

AGREEMENT TO SELL

THIS AGREEMENT TO SELL IS MADE AND EXECUTED AT NEW DELHI, on this 15th day of March 2005 by and between:-

1. SH. MOHAN LAL S/O LATE SH. JAIMAL, (2) SH. SURESH KUMAR S/O LATE SH. FATEH SINGH, (3) SH. PREM SINGH S/O LATE SH. RISAL SINGH, (4) SH. SON PARKASH S/O SH. CHHAJU RAM & (5) SH. RAM SINGH S/O LATE SH. DOOP CHAND ALL R/O VILL. NAMADA, NEW DELHI (hereinafter called and referred to as "the First Party/ies").

AND

2. SMT. SHANTI DEVI WIFE OF SHRI TULSI RAM R/O H.NO. 122, PHASE-II, BHADRA VIHAR, DELHI (hereinafter called and referred to as "the Second Party").

The expression of both the parties shall mean and include their respective legal heirs, successors, executors, administrators, representatives and assignees.

Whereas the First party/ies is the owner of PROPERTY BEARING PORTION OF PLOT NO. 9-B, LAND AREA MEASURING 63.3 SQ.YDS. (15 X 10) OUT OF KHASRA NO. 75 & 76, SITUATED IN THE REVENUE ESTATE OF VILLAGE NAMADA DELHI STATE NEW DELHI ABADI KNOWN AS COLONY VIPIN GARDEN, WITH UTTAM NAGAR, NEW DELHI 110059, WITH THE FREEHOLD RIGHTS UNDER THE SAID PROPERTY and which is bounded as under:-

NORTH: ROAD 23 FT.
SOUTH: OTHER'S LAND.
EAST: PLOT NO. 9-A.
WEST: PLOT NO. 9-A.

(hereinafter called and referred to as "the said property")

And Whereas the First party/ies for his/her legal needs and bonafide requirements, has agreed to sell the above mentioned property to the Second Party and the Second Party has also agreed to purchase the same from the First Party for a sum of RS.40,000/- which the First Party has received IN FULL FORTY THOUSAND ONLY from the Second Party vide a separate legal receipt and nothing has remained balance out of total sale consideration as per terms and conditions of this Agreement.

Reshant

Ram S

Suresh Kumar
contd..p/2
ambark

51819
SI. No. HS
Name S/o
To
Date
24 MAR 2005
VANDER PAL SINGH
Stamp Agent
Lic. No. 390
217, S.R.-II
New Delhi

renewable utility

NOW THIS AGREEMENT TO SELL WITNESSETH AS UNDER :-

1. That the First Party has delivered the vacant possession of the above mentioned property on to the Second Party.
2. That the First Party shall not create any charge on the said Plot Property from the date of this Agreement and the Second Party has become the undisputed owner of this Property.
3. That the Second Party shall realise all the rents and profits of the said property from the date of this Agreement.
4. That the First Party shall assure the Second Party that the said Property/Land under sale is free from all sorts of encumbrances such as sale transfer, exchange mortgage, gift, litigation court decree etc. And that there is no legal defect in the title of the First Party and if proved otherwise the First Party shall be liable to compensate the Second Party to the extent of loss suffered by the Second Party with all costs expenses and Damages etc. Through all his movable and immovable properties.
5. That, as and when permissible, the First Party shall execute a proper Sale Deed of the said property and shall get the same registered in the Office of Sub-Registrar, if required by the Second Party at the cost and expenses of the Second Party.
6. That all the Demands, Taxes, Charges, Liabilities, Duties and outgoings, if any relating to the said property shall be borne by the first Party up to the date of this Agreement and thereafter by the Second Party.
7. If the First Party fails to complete his part of the sale transaction or infringes any terms conditions of this Agreement then the Second Party shall be Entitled to get the said transaction complete through the court by filing a suit for specific performance at the cost expenses of the First Party.
8. That the First Party has received the said entire amount from the second party, in full and final settlement and nothing remains due out of the sale price.
9. That the legal heirs, of the First Party shall not claim any title interest over the said property in future or interfere in any manner and in case of any such eventually First Party will be liable and responsible to compensate the Second Party for all losses/damages suffered by the Second Party through his personal properties both movable and immovable.
10. That the first party have allow to the second party for going at top floors take for repairs and mentienance purpose of water tank and aeris etc. and in this respect that the first party or the owner other floors shall have no objection for that.

IN WITNESSES WHEREOF, both the Parties have Signed this Agreement to Sell on the Month, Days and Year First Written above in the Presence of the following Witnesses.

WITNESSES :-

1

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FIRST PARTY

RouE

our look af

SECOND PARTY

Y. N. R. 2

Secured by



AFFIDAVIT

I/We, (1) SH. ROSHAN LAL S/O LATE SH. JAIMAL, (2) SH. SURESH KUMAR S/O LATE SH. FATEH SINGH, (3) SH. PREM SINGH S/O LATE SH. RISAL SINGH, (4) SH. OM PARKASH S/O SH. CHHAJU RAM & (5) SH. RAM SINGH S/O LATE SH. ROOP CHAND ALL R/O VILL. NAWADA, NEW DELHI do hereby solemnly affirm and declare as under:-

1. That I/We am/are the owner of PROPERTY BEARING PORTION OF PLOT NO. 8-B, LAND AREA MEASURING 63.3 SQ. YDS. (15' X 38') OUT OF KHASRA NO. 75 & 76, SITUATED IN THE REVENUE ESTATE OF VILLAGE NAWADA DELHI STATE NEW DELHI ABADI KNOWN AS COLONY VIPIN GARDEN EXTN., UTTAM NAGAR, NEW DELHI-110059, WITH THE FREEHOLD RIGHTS UNDER THE SAID PROPERTY (hereinafter called the said property)
2. That I/We have entered into an Agreement with SMT. SHANTI DEVI WIFE OF SHRI TUHI RAM R/O H.NO. 122, PHASE-II, DWARKA VIHAR, DELHI vide Agreement to Sell dt. 15th day of March 2005 and handed over the actual vacant physical possession of the said property to said purchaser on the spot.
3. That I/We have also executed a WILL, Receipt etc. in respect of the said property in favour of the said purchaser.
4. That I/We shall/will never cancel/revoke any of the above mentioned documents under any circumstances.
5. That I/We have sold the above referred property under legal necessity and benefit of estates with the consent of all legal heirs.

Roshan Lal

DEPONENT

Suresh Kumar

VERIFICATION:

Verified at New Delhi, on this 15th day of March 2005, that the contents are true and correct to the best of my/our knowledge and belief.

ATTESTED

Notary Public

11.5 MAR 2005

Roshan Lal

DEPONENT

Suresh Kumar

Ram Singh

RECEIPT

I/We, (1) SH. ROSHAN LAL S/O LATE SH. JAIMAL, (2) SH. SURESH KUMAR S/O LATE SH. FATEH SINGH, (3) SH. PREM SINGH S/O LATE SH. RAN SINGH, (4) SH. OM PARKASH S/O SH. CHHAJU RAM & (5) SH. RAN SINGH S/O LATE SH. ROOP CHAND ALL R/O VILL. NAWADA, NEW DELHI have received a sum of RS. 40,000/- RUPEES FORTY THOUSAND ONLY from SH. SHAKTI DEVI WIFE OF SHRI TUHI RAM R/O H.NO. 122, PHASE-II, TOWARK VINDAR, DELHI in cash, in advance as full and final sale consideration against my PROPERTY BEARING PORTION OF PLOT NO. B-B, LAND AREA MEASURING 30.3 SQ.YDS. (15' X 38') OUT OF KHASRA NO. 75 & 76, SITUATED IN THE REVENUE ESTATE OF VILLAGE NAWADA DELHI STATE NEW DELHI ABADI KNOWN AS COLONY VIRIN GARDEN EXTN., UTTAM NAGAR, NEW DELHI-110059, WITH THE FREEHOLD RIGHTS UNDER THE SAID PROPERTY as per terms and conditions of agreement to sell, dt. 15th day of March 2005.

Hence, I/We have executed and signed this Receipt at New Delhi, in the presence of the following Witnesses.

WITNESSES:-
1.

Ran Singh

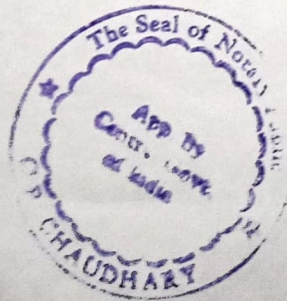
EXECUTANT(S)

Surender Kumar



(1) SH. ROSHAN LAL S/O LATE SH. JAIMAL, (2) SH. SURESH KUMAR S/O LATE SH. FATEH SINGH, (3) SH. PREM SINGH S/O LATE SH. RAN SINGH, (4) SH. OM PARKASH S/O SH. CHHAJU

Surender Kumar
Ran Singh



ATTESTED

[Signature]

11 5 11 2005

POSSESSION-LETTER

I/We, (1) SH. ROSHAN LAL S/O LATE SH. JAIMAL, (2) SH. SURESH KUMAR S/O LATE SH. FATEH SINGH, (3) SH. PREM SINGH S/O LATE SH. RISAL SINGH, (4) SH. OM PARKASH S/O SH. CHHAJU RAM & (5) SH. RAM SINGH S/O LATE SH. ROOP CHAND ALL R/O VILL. NANADA, NEW DELHI have handed over the actual vacant physical possession of my PROPERTY BEARING PORTION OF PLOT NO. 6-B, LAND AREA MEASURING 63.3 SQ.YDS. (15' X 38') OUT OF KHASRA NO. 75 & 76, SITUATED IN THE REVENUE ESTATE OF VILLAGE NANADA DELHI STATE NEW DELHI ASADI KNOWN AS COLONY VIPIN GARDEN EXTN., LITAM NAGAR, NEW DELHI-110059, WITH THE FREEHOLD RIGHTS UNDER THE SAID PROPERTY TO SMT. SHANTI DEVI WIFE OF SHRI TUHI RAM R/O H.NO. 222, PHASE-II, DWARKA VIHAR, DELHI alongwith all documents as per terms and conditions of agreement to sell, dt. 15th day of March 2005.

Hence, I/We have executed and signed this Possession Letter at New Delhi, in the presence of the following witnesses.

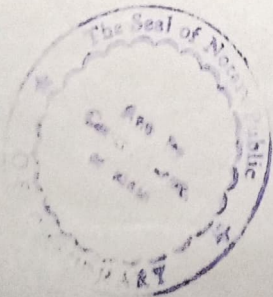
POSSESSION TAKEN OVER BY

POSSESSION HANDED OVER BY

WITNESSES:

1.

2.



Handwritten signatures and names:
Roshan Lal
Suresh Kumar
Om Parkash
Ram Singh
Om Parkash

ATTES

Handwritten signature

Handwritten date: 11.5.2005